

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 07/30/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: C22-01352
CASE NAME: ETHAN LYNCH VS. JOHN MUIR HEALTH, A CORPORATION
SETTLEMENT CONFERENCE WITH SETTLEMENT MENTOR
FILED BY:

TENTATIVE RULING:

No appearances in Department 10 required, as this is set for a settlement conference.

2. 8:31 AM CASE NUMBER: C24-03183
CASE NAME: NAVYA SHARMA VS. RAVINDER SHARMA
*CASE MANAGEMENT CONFERENCE TRAILING MOTION.
FILED BY:

TENTATIVE RULING:

The Court believes this matter has resolved. The Court continues this hearing to September 30 for and Order to Show Cause Why the Case Should Not Be Dismissed. Of course, the OSC will be mooted by the filing of a dismissal.

Law & Motion

3. 9:00 AM CASE NUMBER: C22-01607
CASE NAME: SANDRA GAVAN VS. CRYSTYL RANCH HOMEOWNERS ASSOCIATION
HEARING ON SUMMARY MOTION
FILED BY: CRYSTYL RANCH HOMEOWNERS ASSOCIATION
TENTATIVE RULING:

Defendants Crystyl Ranch Homeowners Association (“HOA”), Omni Community Management, LLC (“Omni”), John Bolin (“Bolin”), and Daniel Mahoney (“Mahoney” together with HOA, Omni, and Bolin, “Defendants”) bring the instant motion for summary judgment, or in the alternative summary adjudication (“MSJ”) against the complaint of plaintiff Sandra Gavan (“Plaintiff”).

For the reasons discussed below, the Court **GRANTS** Defendants’ motion for summary judgment as to Omni Community Management LLC and **DENIES** Defendants’ motion for summary judgment with respect to Crystyl Ranch Homeowners Association, John Bolin, and Daniel Mahoney.

Legal Standard for Motion for Summary Judgment

Code of Civil Procedure (“CCP”) § 437c, subds. (o)(1) and (p)(2) provide the relevant legal standard for deciding Defendant’s Motion. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) “All